

Calendar Line 1

Case Name: *Amarjeet Rai v. City of San Jose.*

Case No.: 23-CV-422700

Motion for Summary Judgment, or in the Alternative, Summary Adjudication to the Complaint by Defendant City of San Jose

Factual and Procedural Background

This is an employment action brought by plaintiff Amarjeet Rai (“Plaintiff”) against defendant City of San Jose (“City”).

According to the complaint, Plaintiff currently works for City Hall in her capacity as a Staff Specialist. (Complaint at ¶ 9.) Plaintiff’s tasks include office administration duties that involve a great deal of coordinating and organizing. (Id. at ¶ 12.) Fingerprinting is not listed as an essential job duty. (Ibid.)

Plaintiff suffers from the following disabilities: an autoimmune disease, migraines, and a back injury. (Complaint at ¶ 13.) In March 2020, due to the COVID epidemic, Plaintiff’s medical provider requested that Plaintiff be isolated from the public and work 100% from home because she was immune-compromised. (Id. at ¶ 14.) The City initially accommodated Plaintiff’s request to work from home and she performed her duties without issue. (Id. at ¶ 15.)

In August 2020, Plaintiff, at the City’s request, reluctantly agreed to act as a backup to the fingerprinting leads. (Complaint at ¶¶ 16, 18.) Fingerprinting had never been a part of Plaintiff’s job duties for the previous eight years. (Id. at ¶ 18.) Plaintiff also expressed concern and did not want to perform the fingerprinting duties because of her disability. (Ibid.) In November 2021, Plaintiff was appointed as the primary person to take fingerprints which required her to work three days in person each week. (Id. at ¶ 20.) The City assured Plaintiff that it would monitor and ensure that any individual she fingerprinted, would be checked to confirm COVID vaccinations were up to date. (Id. at ¶ 21.)

On January 6, 2022, Plaintiff learned that at least one individual she had fingerprinted had not had her vaccination status checked prior to seeing her. (Complaint at ¶ 22.) Around the same time, Plaintiff learned that the City intended to assign all vaccinated and authorized unvaccinated individuals who needed fingerprinting to her. (Id. at ¶ 23.) At this time, Plaintiff’s medical provider requested that she once again work from home until the COVID numbers quelled. (Id. at ¶ 25.)

On January 20, 2022, Plaintiff had a telephonic meeting with the City to discuss her accommodation request. (Complaint at ¶ 26.) The City stated that it would not be able to ask about the vaccination status of individuals being fingerprinted. (Ibid.) At the same meeting, the City also rejected Plaintiff’s doctor’s note and request for accommodation. (Id. at ¶ 27.) The City then insisted that Plaintiff commit to fingerprinting individuals at least two days per week. (Id. at ¶¶ 27-28.) As a consequence, Plaintiff developed a migraine after the call and later broke out in shingles. (Id. at ¶¶ 28-29.)

The City thereafter asked Plaintiff for another doctor’s note regarding her work from home accommodation. (Complaint at ¶ 30.) Plaintiff provided the City with a note requesting her to

continue to work from home for six months. (Ibid.) On April 8, 2022, the City responded that it was able to accommodate her. (Id. at ¶ 31.)

At the end of October 2022, Plaintiff submitted another doctor's note to the City providing the following temporary work restriction: "work in isolation from other people." (Complaint at ¶ 32.) The City denied the request, claiming it was unable to allow Plaintiff to work remotely. (Id. at ¶ 33.) The City thereafter placed Plaintiff on unpaid leave. (Ibid.) To date, the City continues to refuse to accommodate Plaintiff and has kept her unpaid leave, causing her undue hardship. (Id. at ¶ 34.)

On August 16, 2023, Plaintiff filed a complaint with the California Civil Rights Department and received an Immediate Right-to-Sue letter. (Complaint at ¶ 8.)

On September 12, 2023, Plaintiff filed the operative complaint against the City alleging causes of action under the California Fair Employment and Housing Act ("FEHA") for: (1) disability discrimination; (2) failure to provide a reasonable accommodation; (3) failure to engage in a good faith interactive process; (4) retaliation; and (5) failure to prevent discrimination and retaliation.

On May 8, 2026, the City filed the motion presently before the court, a motion for summary judgment, or in the alternative, summary adjudication to the complaint. The City filed a request for judicial notice in conjunction with the motion. Plaintiff filed written opposition. The City filed reply papers.

Trial is scheduled for September 14, 2026.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

The City argues there is no triable issue of material fact as to Plaintiff's claims and thus judgment should be entered as a matter of law. In the alternative, the City moves for summary adjudication of the first, second, third, fourth, and fifth causes of action.

Request for Judicial Notice

"Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter." (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117.)

Here, the City requests judicial notice of the Federated City Employees' Retirement System Disability Retirement Application Rules and Procedures under Evidence Code section 452, subdivisions (c) and (h). (See Request for Judicial Notice at Ex. F.) Plaintiff does not oppose the request. And the request appears relevant to arguments raised in support of the motion for summary judgment and summary adjudication. (See *Gbur v. Cohen* (1979) 93 Cal.App.3d 296, 301 [information subject to judicial notice must be relevant to the issue at hand].)

Accordingly, the request for judicial notice is GRANTED.

Evidentiary Objections

“In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court...” (Code Civ. Proc., § 437c, subd. (c).)

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

Written evidentiary objections must be made in a separate document and must not be re-stated or re-argued in the separate statement. (Cal. Rules of Court, rule 3.1354(b).) Objections must identify the specific item of evidence that is objectionable. (Ibid.)

In addition, evidentiary objections must be accompanied by a proposed order that complies with the requirements set forth in California Rules of Court, rule 3.1354(c). The rule requires an objecting party to file two separate documents, objections and a separate proposed order, both in one of the approved formats set forth in the rule. (See Cal. Rules of Court, rule 3.1354(b) and (c).) Here, the City asserted objections in response to Plaintiff’s separate statement of additional facts which is not permitted by the rules of court. (See City’s Disputed Facts at Nos. 14, 16-18, 20-34, 36-52, 54-58, 61-62, 65-69, 73, 76-77, 79-80, 84, 86-90, 93, 99, 101, 103-104, 109-113, 115-120, 122, 124.) Nor did the City submit a separate document or proposed order for the objections in compliance with the rules of court.

Therefore, the court declines to rule on the objections based on the above-described defects. (See *Vineyard Spring Estates v. Super. Ct.* (2004) 120 Cal.App.4th 633, 642 [trial courts only have duty to rule on evidentiary objections presented in proper format]; see also *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 [trial court did not abuse its discretion in refusing to rule on improperly formatted evidentiary objections].)

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) “The object of the summary judgment procedure is ‘to cut through the parties’ pleadings’ to determine whether trial is necessary to resolve their dispute. [Citation.]” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020 (*Spinks*).)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact...” (*Aguilar*,

supra, 25 Cal.4th at p. 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

A defendant moving for summary judgment may satisfy its initial burden either by producing evidence of a complete defense or by showing the plaintiff’s inability to establish a required element of the case. (*Spinks, supra*, 171 Cal.App.4th at p. 1021.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.)

A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850, fn. omitted.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom.” (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party’s evidence is strictly construed, while the opponent’s is liberally construed. (*Id.* at p. 843.)

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’ [Citation.]” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.)

“[S]ummary judgment (or summary adjudication) is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]” (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660; see *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 [“The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence.”].)

First Cause of Action: Disability Discrimination

“A prima facie case of disability discrimination under FEHA requires a showing that (1) the plaintiff suffered from a disability, (2) the plaintiff was otherwise qualified to do his or her job, with or without reasonable accommodation, and (3) the plaintiff was subjected to adverse employment action because of the disability.” (*Castro-Ramirez v. Dependable Highway Express, Inc.* (2016) 2 Cal.App.5th 1028, 1037.) “Respecting the third element, the disability must be a substantial factor motivating the employer’s adverse employment action.” (*Ibid.*)

On summary judgment, “the pleadings frame the issues to be resolved. ‘The purpose of a summary judgment [adjudication] proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.’ [Citation.] “The function of the pleadings in a motion for summary judgment

[adjudication] is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” [Citations.]’ [Citations.]” (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 477.)

In the first cause of action, Plaintiff alleges she had a disability as she suffered from an autoimmune disease, migraines, and a back injury, which limits her major life activities, including working. (Complaint at ¶ 37.) Plaintiff alleges she was able to perform the essential job duties with reasonable accommodation for her disabilities. (Id. at ¶ 39.) Plaintiff further alleges that her disabilities were a substantial motivating factor in the City’s decision to place her on indefinite unpaid leave. (Id. at ¶ 41.)

On summary judgment, the City argues the discrimination claim fails as it had non-discriminatory reasons for its actions and Plaintiff cannot show pretext.

Burden Shifting Analysis in Employment Cases

In reviewing motions for summary judgment/adjudication in employment discrimination cases, California courts employ the burden-shifting formula first articulated by the U. S. Supreme Court in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 (*McDonnell Douglas*). (See *King v. United Parcel Service* (2007) 152 Cal.App.4th 426, 433, fn.2; see also *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1004 (*Scotch*).) Under *McDonnell Douglas*, on a motion for summary judgment brought against such a cause of action the plaintiff bears the burden of establishing a prima facie case of discrimination (or retaliation), and the burden then shifts to the employer to offer a legitimate, nondiscriminatory reason for the adverse employment action. (*Mixon v. Fair Employment and Housing Commission* (1992) 192 Cal.App.3d 1306, 1318.)

“ ‘A defendant employer’s motion for summary judgment slightly modifies the order of these [*McDonnell Douglas*] showings.’ ” (*Scotch, supra*, 173 Cal.App.4th at p. 1005, quoting *Kelly v. Stamps.com, Inc.* (2005) 135 Cal. App. 4th 1088, 1097 (*Kelly*).) To prevail on its motion, the defendant employer is “required to show *either that* (1) plaintiff could not establish one of the [prima facie] elements of the FEHA claim, or (2) there was a legitimate, nondiscriminatory reason for its decision to terminate plaintiff’s employment.” (*Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237, 1247, citing *Kelly, supra*, 135 Cal. App. 4th at pp. 1097-1098, italics added.)

Legitimate, Non-Discriminatory Reasons

“Legitimate” reasons in this context are reasons that are factually unrelated to prohibited bias, and therefore, if true, would preclude a finding of discrimination. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 358.) This burden, like the prima facie case, has been found not to be onerous. (See *Board of Trustees of Keene State College v. Sweeney* (1978) 439 US 24, 25, fn. 1 [employer’s burden met “if he simply explains what he has done or produce(s) evidence of legitimate nondiscriminatory reasons”].) “Examples of legitimate reasons are a failure to meet performance standards or a loss of confidence in an employee.” (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 861.)

Here, the City contends it had legitimate, non-discriminatory reasons for placing Plaintiff on indefinite unpaid leave. In support, the City relies on the following material facts in their separate statement:

- Sarah Steele (“Ms. Steele”), the City’s designated Person Most Knowledgeable, testified that while Plaintiff was permitted to work remotely on a temporary basis, she was unable to perform some of her essential duties, including maintaining hard-copy files, covering the front desk, conducting inventory, preparing binders, and organizing special events, among other responsibilities.
- Ms. Steele testified that continuing to accommodate Plaintiff by allowing full-time remote work would create an undue burden, and that the City therefore decided to place Plaintiff on unpaid leave.
- Ms. Steele testified that continuing to allow Plaintiff to work remotely on a full-time basis created an undue burden on the City because it required redistribution of approximately 20 percent of Plaintiff’s duties to other employees, who were required to perform both their own duties and Plaintiff’s duties. (See City’s Separate Statement of Undisputed Facts [“SSUF”] at Nos. 14, 17-18.)

Based on these material facts, a trier of fact may conclude that the City did not discriminate against Plaintiff on the basis of her disability as it had legitimate, non-discriminatory reasons for placing her on indefinite unpaid leave. Having done so, the burden now shifts to Plaintiff to provide evidence of pretext.

Direct Evidence of Discriminatory Intent

In opposition, Plaintiff asserts the burden shifting analysis outlined in *McDonnell Douglas* is not applicable as there is direct evidence of discrimination on the part of the City.

The *McDonnell Douglas* three-stage framework does not apply where the plaintiff presents direct evidence of discrimination. (*Glynn v. Super. Ct.* (2019) 42 Cal.App.5th 47, 53 (*Glynn*).) “Thus, in disability discrimination cases, the threshold issue is ‘whether there is direct evidence that the motive for the employer’s conduct was related to the employee’s physical or mental condition.’ [Citation.] ‘[A] plaintiff alleging disability discrimination can establish the requisite employer intent to discriminate by proving (1) the employer knew that plaintiff had a physical condition that limited a major life activity, or perceived him to have such a condition, and (2) the plaintiff’s actual or perceived physical condition was a substantial motivating reason for the defendant’s decision to subject the plaintiff to an adverse employment action.’ [Citation.]” (*Ibid.*)

“Direct evidence is evidence that proves a fact without inference or presumption.” (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 35 (*Zamora*).)

Examples of “[d]irect evidence include comments that demonstrate discriminatory animus and a causal relationship between those comments and the adverse employment action.” (*Ibid.*; see *Dejung v. Super. Ct.* (2008) 169 Cal.App.4th at pp. 540-541, 550 [chairman of hiring committee told employee seeking promotion that “we’re looking for someone younger,” “maybe in their 40’s”].) Direct evidence also includes outright admissions that an adverse employment action was predicated on a belief that an employee was disabled. (See *Glynn*,

supra, 42 Cal.App.5th at pp. 50-53 [employer admitted it terminated employee based on its belief that employee was totally disabled and unable to work]; see also *Wallace v. County of Stanislaus* (2016) 245 Cal.App.4th 109, 123, 132-133 [employer admitted it imposed unpaid leave of absence on employee based on its belief that restrictions necessitated by employee's physical disability rendered him unable to safely perform his duties.].)

Plaintiff however fails to cite any specific direct evidence of discriminatory intent to the court showing the City placed her on indefinite unpaid leave because of her disability. (See OPP at p. 18:13-27; *Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 75 ["It is appellants' duty to direct the court to evidence that supports their claims. It is not the court's duty to rummage through the papers to construct or resuscitate their case."]); see also *Eddins v. Redstone* (2005) 134 Cal.App.4th 290, 318 ["The trial court cannot be expected to address expressly every piece of evidence contained in a voluminous record, much less evidentiary items on which a party has not relied to create a dispute issue of material fact."].) The court thus applies the *McDonnell Douglas* test and examines whether Plaintiff has evidence to establish pretext.

Evidence of Pretext

"[T]o avoid summary judgment, an employee claiming discrimination must offer substantial evidence that the employer's stated nondiscriminatory reason for the adverse action was untrue or pretextual, or evidence the employer acted with a discriminatory animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination." (*Hersant v. Department of Social Services* (1997) 57 Cal.App.4th 997, 1004-1005 (*Hersant*).)

" 'The [employee] cannot simply show that the employer's decision was wrong or mistaken, since the factual dispute at issue is whether discriminatory animus motivated the employer, not whether the employer is wise, shrewd, prudent, or competent. [Citations.] Rather, the [employee] must demonstrate such weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action that a reasonable factfinder could rationally find them "unworthy of credence," [citation], and hence infer "the employer did not act for the [the asserted] non-discriminatory reasons." [Citations.]' [Citations.]" (*Hersant, supra*, 57 Cal.App.4th at p. 1005.)

As the Sixth Appellate District explained:

"[E]vidence that the employer's claimed reason is *false* – such as that it conflicts with other evidence, or appears to have been contrived after the fact – will tend to suggest that the employer seeks to conceal the real reason for its actions, and this in turn may support an inference that the real reason was unlawful. This does not mean that the fact finder can examine the employer's stated reasons and impose liability solely because they are found wanting. But it can take account of manifest weaknesses in the cited reasons in considering whether those reasons constituted the real motive for the employer's actions, or have instead been asserted to mask a more sinister reality." (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 715.)

In opposition, Plaintiff argues the following facts are sufficient to establish pretext: (1) the City's conclusions regarding which of her duties were essential and which could be performed at home were false and unsupported; (2) the City ignored Plaintiff's offer to come in after hours, as she had done from 2013-2020, to perform any tasks that required her to be in person; and (3) the City misrepresented its policy regarding remote work. (See OPP at p. 19:1-8; Plaintiff's Additional Facts at Nos. 94, 99, 105, and 122.)

But, Plaintiff fails to set forth any substantive argument addressing how each of these points supports evidence of pretext. (See *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 ["The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived."]; *United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt].) Nor does the court find that these arguments demonstrate the kind of inconsistencies, weaknesses, and implausibilities to establish pretext or that the City placed Plaintiff on an indefinite unpaid leave with a discriminatory animus. As there is no evidence of pretext, there is no viable cause of action for disability discrimination under the FEHA.

Therefore, the motion for summary adjudication to the first cause of action is GRANTED. Having granted the motion on this ground, the court declines to address the remaining arguments raised by the City to the first cause of action.

Second Cause of Action: Failure to Provide a Reasonable Accommodation

"The FEHA requires employers to make reasonable accommodation for the known disabilities of employees and applicants to enable them to perform the essential functions of a position, unless doing so would produce undue hardship to the employer's operations." (*Zamora, supra*, 71 Cal.App.5th at p. 40.)

A "reasonable accommodation" is any "modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired." (*Scotch, supra*, 173 Cal.App.4th at p. 1010.)

"The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff's disability. [Citation.]" (*Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1192.)

Reasonable accommodations may include "[j]ob restricting, part-time or modified work schedules, reassignment to a vacant position...and other similar accommodations for individuals with disabilities." (Gov't Code, § 12926, subd. (p).) "FEHA does not obligate an employer to choose the best accommodation or the specific accommodation of a disabled employee or applicant seeks. It requires only that the accommodation chosen be 'reasonable.' [Citation.]" (*Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, 1222.)

In the second cause of action, Plaintiff alleges she had disabilities which substantially limited the following major life activities: working. (Complaint at ¶ 48.) The City knew of Plaintiff's disabilities. (Ibid.) Plaintiff alleges she was able to perform the essential job duties of her position with reasonable accommodation. (Id. at ¶ 49.) The City allegedly failed to meet its duty to provide reasonable accommodations for Plaintiff's known disabilities and instead placed Plaintiff on indefinite unpaid leave. (Id. at ¶ 50.)

On summary judgment, the City first contends Plaintiff did not provide adequate medical information to support her requested accommodation. (See City's SSUF at Nos. 49, 50-59.) This contention however is not compelling as Plaintiff, in opposition, submits evidence showing the City was aware of her disabilities and work restrictions. (See Plaintiff's Additional Fact at No. 12.)

The City also asserts that no reasonable accommodation existed that would allow Plaintiff to perform the essential functions of her position. (See City's SSUF at Nos. 60-65, 68-71.) The City's assertion is based on the ground that Plaintiff could not perform the essential functions of her position under her proposed accommodation. (Id. at Fact No. 65 [Ms. Steele testified that Plaintiff could not perform all essential duties remotely].) This fact however is disputed as Plaintiff, in opposition, submits evidence demonstrating she can perform all of the essential functions of her position remotely.¹ (See Plaintiff's Additional Facts at Nos. 8-10.) Also, as stated above, the City decided to place Plaintiff on indefinite unpaid leave as continuing to allow her to perform full time remote work would create an undue burden. But, as pointed out in opposition, the City does not carry its burden in establishing an undue burden as required by California law. (See *Atkins v. City of Los Angeles* (2017) 8 Cal.App.5th 696, 733 [Government Code Section 12940, subdivision (m)(1), places the burden of demonstrating undue hardship on the employer. Whether a particular accommodation will impose an undue hardship for a particular employer is determined on a case by case basis and involves a multi-faceted, fact-intensive inquiry.]; see also *Kaur v. Foster Poultry Farms LLC* (2022) 83 Cal.App.5th 320, 351 ["Undue hardship is evaluated with reference to several specific and strictly defined criteria."].) Nor does placing Plaintiff on an indefinite unpaid leave of absence constitute a reasonable accommodation. (See *Mois v. Wynn Las Vegas LLC* (9th Cir. 2017) 715 Fed. Appx. 600, 601 [Ninth Circuit concluding that "placing Mois on unpaid leave was not a reasonable accommodation"]; *Dawson v. Akal Sec., Inc.* (9th Cir. 2016) 660 Fed. Appx. 504, 506 ["The fact that unpaid leave may be a reasonable accommodation *when it is requested* 'does not mean that it cannot also be an adverse action, particularly where the employee is placed on unpaid leave involuntarily.'"]; see also *Godfrey v. Oakland Port Services Corp.* (2014) 230 Cal.App.4th 1267, 1277, fn. 10 ["Federal circuit opinions do not bind California courts, but they 'may serve as persuasive authority.' "].)

As triable issues of material fact remain, the motion for summary judgment is DENIED. (See *Gleason v. Klamer* (1980) 103 Cal.App.3d 782 [appellate court reversed trial court's order granting summary judgment because there was a single triable issue of fact].) The motion for summary adjudication to the second cause of action is DENIED.

¹ To the extent that the City takes issue with portions of the declaration submitted by John Tucker with Plaintiff's opposition (see Reply at p. 4:18-23), the City has not submitted objections in proper form addressing those deficiencies to the court for reasons articulated above.

Third Cause of Action: Failure to Engage in a Good Faith Interactive Process

“The FEHA makes it ‘an unlawful employment practice ... [¶] ... [¶] ... [f]or an employer or other entity covered by this part to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.’ [Citation.] Although the interactive process is an informal process designed to identify a reasonable accommodation that will enable the employee to perform his or her job effectively [citation], an employer’s failure to properly engage in the process is separate from the failure to reasonably accommodate an employee’s disability and gives rise to an independent cause of action [citation].” (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal.App.4th 954, 971 (*Swanson*).)

“The employee must initiate the process unless his or her disability and the resulting limitations are obvious. Once initiated, the employer has a continuous obligation to engage in the interactive process in good faith. [Citation.] ‘Both employer and employee have the obligation “to keep communications open” and neither has “a right to obstruct the process.”’ [Citation.] “Each party must participate in good faith, undertake reasonable efforts to communicate its concerns, and make available to the other information which is available, or more accessible, to one party. **Liability hinges on the objective circumstances surrounding the parties’ breakdown in communication, and responsibility for the parties’ breakdown in communication, and responsibility for the breakdown lies with the party who fails to participate in good faith.**” ’ [Citation.]” (*Swanson, supra*, 232 Cal.App.4th at pp. 971-972, emphasis added.)

“ ‘[T]he fact that an employer took some steps to work with an employee to identify reasonable accommodations does not absolve the employer of liability **If the employer is responsible for a later breakdown in the process, it may be held liable.**’ [Citation.]” (*Swanson, supra*, 232 Cal.App.4th at p. 972, emphasis added.)

In the third cause of action, Plaintiff alleges she was willing to participate in an interactive process to determine whether reasonable accommodations could be made so that she would be able to perform her essential job requirements. (Complaint at ¶ 58.) The City allegedly failed to engage in a timely, good faith, interactive process with Plaintiff to determine effective reasonable accommodations for her known disabilities, and instead placed her on indefinite unpaid leave. (Id. at ¶ 59.)

Here, the City argues it engaged in an extensive, good faith interactive process with Plaintiff over an extended period. (See City’s SSUF at Nos. 72-74.) But, as explained above, liability hinges on whether the City was responsible for the breakdown in the interactive process. Plaintiff, in opposition, submits evidence that, at a minimum, raises a triable issue of material fact as to whether the City was responsible for the breakdown in the process to defeat the instant motion for summary adjudication. (See Plaintiff’s Disputed Facts at Nos. 72-74; Plaintiff’s Additional Facts at Nos. 117-121.)

Accordingly, the motion for summary adjudication to the third cause of action is DENIED.

Fourth Cause of Action: Retaliation

“[T]o establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

In the fourth cause of action, Plaintiff alleges she engaged in protected activity when she requested reasonable accommodations. (Complaint at ¶ 65.) Plaintiff further alleges her requests for an accommodation were a substantial motivating reason for the City’s decision to place her on indefinite unpaid leave. (Id. at ¶¶ 66-67.)

Here, like the first cause of action, the City meets its initial burden on summary adjudication as it proffers evidence demonstrating it had legitimate, non-retaliatory reasons for placing Plaintiff on unpaid leave. (See City’s SSUF at Nos. 82-85.) Plaintiff raises the same pretext arguments that were considered and rejected by the court in connection with the disability discrimination cause of action. (See OPP at p. 20:3.) And, to the extent that Plaintiff relies on a temporal proximity argument, courts have determined that temporal proximity alone cannot establish pretext. (See *Arteaga v. Brink’s, Inc.* (2008) 163 Cal.App.4th 327, 353 [temporal proximity alone is not sufficient to raise a triable issue as to pretext once the employer has offered evidence of a legitimate, nondiscriminatory reason for the adverse employment action].) Thus, the court finds there is no viable claim for retaliation under the FEHA.

Consequently, the motion for summary adjudication to the fourth cause of action is GRANTED. Having granted the motion on this ground, the court declines to address the remaining arguments raised by the City to the fourth cause of action.

Fifth Cause of Action: Failure to Prevent Discrimination and Retaliation

A claim for “Failure to Prevent Discrimination and Retaliation” necessarily depends upon establishing that discrimination and retaliation occurred in the first place. Under the FEHA, an employer has an obligation to “take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (See Govt. Code, § 12940, subd. (k).) A prerequisite to a finding of liability for the failure to take all reasonable steps, however, is finding that the plaintiff actually suffered unlawful discrimination, harassment, or retaliation. (See *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 282-283; see also *Scotch, supra*, 173 Cal.App.4th at p. 1021.)

In the fifth cause of action, Plaintiff alleges the City’s failure to take reasonable steps to prevent discrimination and retaliation was a substantial factor in causing her harm. (Complaint at ¶ 77.) As discussed above, the court granted the motion for summary adjudication to the discrimination and retaliation causes of action. Thus, as those claims fail, so too does the cause of action for failure to prevent discrimination and retaliation.

Therefore, the motion for summary adjudication to the fifth cause of action is GRANTED.

Disposition

The motion for summary judgment to the complaint is DENIED.

The motion for summary adjudication to the first, fourth, and fifth causes of action is GRANTED.

The motion for summary adjudication to the second and third causes of action is DENIED.

The court will prepare the order.

- oo0oo -

Calendar Line 2-5

Case Name: *Freddy Lopez, et al. v. Belfor USA Group, Inc., et al.*

Case No.: 24CV443682

Plaintiffs Freddy Lopez, Greta Hernandez, Heidy Lopez, and Marlon Noguera (“Plaintiffs”) bring this action against Defendants Belfor USA Group, Inc. (“Belfor USA”), Belfor Environmental, Inc. (“Belfor Environmental”), Trademark Staffing, Inc. (“Trademark Staffing,” or “Trademark”), and Does 1 through 100 inclusive. Presently before the court is Defendant Belfor USA and Belfor Environmental, Inc. (collectively, “Belfor Defendants”)’s joint demurrer (“Belfor Demurrer”) to Plaintiffs’ First Amended Complaint (“FAC”) and joint motion to strike (“Belfor Motion to Strike”). Also before the court is Defendant Trademark’s demurrer to Plaintiff’s FAC and motion to strike.

Belfor Defendants’ demurrer to the FAC’s first, second, fifth, sixth, seventh, and eighth causes of action is **OVERRULED**. Belfor Defendants’ demurrer to the FAC’s third and fourth causes of action is **SUSTAINED WITH 30 DAYS’ LEAVE TO AMEND**. Belfor Defendants’ demurrer to the FAC’s ninth through nineteenth causes of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Trademark’s demurrer to the FAC’s first, second, fifth, sixth, seventh, and eighth causes of action is **OVERRULED**. Trademark’s demurrer to the FAC’s third and fourth causes of action is **SUSTAINED WITH 30 DAYS’ LEAVE TO AMEND**, and Trademark’s demurrer to the FAC’s ninth through nineteenth causes of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Belfor Defendants’ and Trademark’s motions to strike the FAC are **DENIED** as moot.

I. BACKGROUND

Belfor Defendants and Trademark jointly employed Plaintiffs. (FAC, ¶¶ 1, 5.) Plaintiffs allege that they were directly employed by Trademark but were assigned to work for the Belfor Defendants’ renovation department. (*Id.* at ¶ 4.) Plaintiffs were also supervised, directed, and managed by the Belfor Defendants’ employees. (*Ibid.*)

Belfor Defendants managed and operated the worksites Plaintiffs were sent to, scheduled and tracked Plaintiffs’ hours worked, and terminated Plaintiffs. (*Id.* at ¶¶ 6, 7.) Trademark fulfilled payroll and onboarding functions. (FAC, ¶ 7.)

Plaintiffs were employed to work as restoration laborers and/or technicians throughout the Bay Area and surrounding regions. (FAC, ¶ 13.) Plaintiffs worked within Belfor Defendants’ restoration department and were primarily responsible for visiting different client worksites to perform demolition, renovation, and restoration work. (*Ibid.*) Plaintiffs also extracted water from buildings that flooded, which primarily occurred during periods of heavy rain. (*Ibid.*)

On or around November 7, 2023, Plaintiffs were informed that Belfor Defendants intended to change the staffing agency they were working with to “Quality Staffing” instead of Trademark. (FAC, ¶ 16.) Plaintiffs were informed that they needed to apply to Quality Staffing to continue working with Belfor Defendants, but that they were unlikely to pass the

background check employed by Quality Staffing. (*Id.* at ¶¶ 16, 17.) Plaintiffs nonetheless applied to Quality Staffing but did not pass the background check. (FAC, ¶ 17.) Plaintiffs ceased working with the Belfor Defendants around November 2023. (FAC, ¶ 17.) Plaintiffs are informed and believe only the restoration department changed staffing agencies but not the construction department. (FAC, ¶ 19.)

Plaintiffs allege that they were frequently contacted while off-duty to work last-minute shifts when clients of Belfor Defendants had an emergency that needed their attention. (FAC, ¶ 23.) Plaintiffs allege they were not adequately compensated for these on-call hours and were deprived of proper overtime and double-time hourly rates. (*Ibid.*) Plaintiffs further allege that they were never afforded rest periods or meal periods. (FAC, ¶¶ 24, 25.) Plaintiffs did not personally clock in or out for meal periods and believe that employees of the Belfor Defendants recorded their meal periods times, which were either partially or wholly inaccurate. (*Id.* at ¶ 26.) Plaintiffs also allege that their paystubs did not accurately reflect the total number of hours they worked per pay period, and had to contact Trademark to correct these issues, else they would have been deprived of their lawful wages. (*Id.* at ¶ 27.)

Plaintiffs further allege that their employment duties required them to undertake renovation, demolition, and construction projects within the worksites of Belfor Defendants' clients. (FAC, ¶ 28.) Plaintiffs allege that “[w]hile undertaking this work, Defendants would frequently inform Plaintiffs that the work sites they were visiting had tested negative for toxic materials, including asbestos and lead. Relying upon these representations, Plaintiffs would perform their work without Personal Protective Equipment[.]” (*Id.* at ¶ 29.) Plaintiffs allege that upon commencing work at their designated job site, they would frequently discover that current or prior worksites had tested positive for contaminants such as asbestos. (*Id.* at ¶ 30.) Although Plaintiffs allege that Defendants would pull them from worksites where the contaminants were discovered and send a team that was trained and equipped to handle such toxic substances to complete the work, “the work they performed within these contaminated worksites was certain to release asbestos fibers into the air, onto their clothing, and was breathed in by Plaintiffs, almost exclusively without their knowledge.” (*Ibid.*)

Plaintiffs allege Defendants failed to adequately test and inspect worksite for toxic chemicals, and on occasion neglected to wait for the test results prior to sending Plaintiffs to commence their work. (FAC, ¶ 31.) Plaintiffs allege that there were additional instances where toxic chemicals were discovered at worksites, but Defendants failed to inform them of these discoveries. (*Id.* at ¶ 32.) Plaintiffs were never certified or trained to work with or identify asbestos-containing materials. (*Id.* at ¶ 33.) Plaintiffs allege they were never given Personal Protective Equipment or separate clothing during their renovation or construction work. (*Id.* at ¶ 34.) Plaintiffs wore their own personal clothing throughout their shift and were responsible for their own laundry and cleanliness. (*Id.* at ¶ 35.) Plaintiffs had no way of knowing whether there were asbestos fibers on their clothing and would unknowingly take fibers to their homes, exposing their families to such toxic materials. (*Ibid.*)

Plaintiffs allege that they voiced their concerns regarding their lack of certification for working with materials like lead or asbestos. (FAC, ¶ 36.) However, Belfor Defendants assured them that these substances would not be present within the worksites, even though Plaintiffs would later discover that these worksites had tested positive for such substances. (*Ibid.*) Despite voicing their concerns, Plaintiff alleges that Belfor Defendants told them that “their only options were to continue work within these unsafe conditions, or find work elsewhere.”

(FAC, ¶ 37.) Plaintiffs further alleges that they would “additionally voice concerns regarding the impacts that such exposure could have on their health, and Defendants failed to take any remedial actions to mitigate Plaintiffs’ risk of exposure.” (*Id.* at ¶ 39.)

Plaintiffs allege that asbestos is a toxic and inherently dangerous substance that is “practically impossible for laborers like Plaintiffs to discover...within their worksites.” (FAC, ¶ 44.) Plaintiffs further note that “[t]oday, most asbestos exposure occurs during the repair, renovation, removal, and maintenance of asbestos-containing materials that were installed decades ago.” (*Id.* at ¶ 47.) Plaintiffs cite numerous California state regulations regarding employee safety for employers engaging in asbestos-related endeavors and note “employers whose employees interact with asbestos are required to be licensed to work with asbestos and are subject to stringent regulations pertaining to employee safety.” (*Id.* at ¶¶ 49-84.)

Plaintiffs allege that despite having the required licensing classifications and certifications, Belfor Defendants “continuously and wantonly acted without regard to the State regulations pertaining to asbestos, and exposed Plaintiffs to asbestos to such toxic materials with conscious disregard of their health.” (FAC, ¶ 85.) Plaintiffs allege that Defendants failed to adopt or follow a reasonable set of policies or procedures, neglected to provide Plaintiffs with safety equipment, failed to properly inspect worksites for hazardous substances, and failed to take reasonable actions to curtail the potential risks of harm to Plaintiffs. (FAC, ¶ 86.) Plaintiffs were also not provided with adequate training to identify or handle the disposal of asbestos materials. (FAC, ¶ 88.) Plaintiffs allege Defendants “failed to hold safety conferences for jobs in which Plaintiffs were exposed to asbestos.” (*Id.* at ¶ 88.) Plaintiffs allege that Defendants intentionally and fraudulently concealed the actual presence of, or possible existence of, asbestos containing materials within the workplaces Plaintiffs were sent to. (FAC, ¶ 90.) Plaintiffs also never received medical monitoring or examination despite their repeated exposure to asbestos and face significant emotional distress resulting from the exposure to them and their families. (*Id.* at ¶ 100.)

On July 23, 2024, Plaintiffs filed suit against Trademark and the Belfor Defendants alleging fourteen causes of action for: (1) failure to pay minimum wages; (2) liquidated damages; (3) unpaid time; (4) failure to provide meal periods; (5) failure to provide rest periods; (6) failure to provide accurate wage statements; (7) failure to pay all wages owed at termination; (8) failure to reimburse business expenses; (9) negligence; (10) medical monitoring; (11) breach of contract / independent duties; (12) unlawful business practices; (13) intentional infliction of emotional distress; and (14) negligent infliction of emotional distress.

On October 7, 2024, Defendant Belfor Environmental Inc. filed its Demurrer and Motion to Strike the Complaint. Therein, Belfor Environmental categorized Plaintiffs’ causes of action into two sets of claims: (1) the “Wage and Hour Claims,” or the first through eighth causes of action; and (2) the “Exposure Claims” or the ninth through fourteenth causes of action. On March 3, 2025, this court overruled Belfor Environmental’s demurrer to the “wage and hour claims,” and sustained Belfor Environmental’s demurrer to the “exposure claims” without leave to amend. On April 25, 2025, Belfor USA filed its Demurrer and Motion to Strike.

On May 5, 2025, Plaintiffs amended their complaint, thereby mooted Belfor USA’s Demurrer and Motion to Strike. Plaintiffs’ FAC alleges causes of action for: (1) failure to pay minimum wages; (2) liquidated damages; (3) unpaid overtime; (4) failure to provide meal

periods; (5) failure to provide rest periods; (6) failure to provide accurate wage statements; (7) failure to pay all wages owed at termination; (8) failure to reimburse business expenses; (9) negligence/strict liability/negligence per se; (10) medical monitoring; (11) breach of contract/independent duties; (12) unlawful business practices; (13) intentional infliction of emotional distress; (14) negligent infliction of emotional distress; (15) civil penalties under the Private Attorneys General Act (“PAGA”); (16) retaliation under Labor Code section 1102.5; (17) retaliation under Labor Code section 6310; (18) fraudulent deceit; and (19) negligent misrepresentation. Plaintiffs’ FAC asserts all causes of action against all Defendants except for causes of action nine, 10, 11, 13, and 14 (negligence/strict liability/negligence per se; medical monitoring; breach of contract/independent duties; intentional infliction of emotional distress; and negligent infliction of emotional distress, respectively) against Belfor USA, Trademark, and Does 1 through 100.

Presently before the court is Belfor Defendants’ joint demurrer and motion to strike Plaintiffs’ FAC and Trademark’s demurrer and motion to strike. Plaintiffs filed untimely oppositions to Belfor Defendants’ and Trademark’s demurrers.² Belfor Defendants and Trademark each filed a reply. Plaintiffs do not oppose Belfor Defendants’ or Trademark’s motions to strike.

II. DEMURRERS

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*Mathews v. Becerra* (2019) 8 Cal.5th 756, 762, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Belfor Defendants’ Demurrer

At the outset, the court notes that Belfor Defendants demur on the basis that Plaintiffs failed to seek leave to amend their complaint. (Belfor Demurrer, p. 10:3-14.) A demurrer is limited to the grounds for objection listed in Code of Civil Procedure section 430.10. Failure to seek leave to amend a complaint is not one of the grounds listed in Code of Civil Procedure

² The court will nevertheless consider Plaintiffs’ opposition to Belfor Defendants’ and Trademark’s demurrers. (See *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750 [courts have discretion to consider untimely filed papers so long as doing so does not affect the substantial rights of the opposing party].)

section 430.10. (Code Civ. Proc., § 430.10.) Accordingly, that portion of the demurrer is overruled.

Belfor Defendants further argue that causes of action one through eight of Plaintiffs' FAC do not state a claim, causes of action nine through 14 are barred by the workers' compensation exclusivity doctrine, and causes of action 16 through 19 are also barred by exclusivity doctrine and otherwise insufficiently pled.

i. Causes of Action One through Eight

Belfor Defendants demur to causes of action one through eight on the basis that the FAC fails to plead wage and hour violations. (Demurrer, 10:15-17.) At the outset, the court notes Plaintiffs' argument in opposition that Belfor Defendants waived objections to causes of action one through eight by failing to raise the objections in an earlier demurrer. However, an objection that a pleading does not state facts sufficient to state a cause of action cannot be waived. (Code Civ. Proc., § 430.80, subd. (a).) Accordingly, the court finds that Belfor Defendants did not waive their objections to causes one through eight.

In addition, Plaintiffs argue in opposition that Belfor Defendants failed to meet and confer prior to filing a demurrer to cause of action one through eight. However, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Code Civ. Proc., § 430.41, subd. (a)(4).) Therefore, the court will not overrule Belfor Defendants' demurrer on that basis. However, neither the letter attached as an exhibit to the Declaration of Plaintiffs' counsel Allan A. Villanueva ("Villanueva Decl.") nor the Declaration of Belfor Defendants' counsel Betty Luu ("Luu Decl.") show that Belfor Defendants' meet and confer attempts prior to filing the demurrer included objections to causes of action one through eight. (Villanueva Decl.; Luu Decl.) Code of Civil Procedure section 430.41 requires the demurring party to "identify *all* of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies." (Code Civ. Proc., § 430.41, subd. (a)(1).) Belfor Defendants clearly did not communicate their intent to demur to causes of action one through eight in their meet and confer attempts. The court admonishes Belfor Defendants to comply with their meet and confer obligations.

Belfor Defendants demur to the FAC's first cause of action for failure to pay minimum wage because Plaintiffs "do not allege that they were called upon and actually worked two or more distinct shifts in a day." (Demurrer, p. 11:3-4.) The FAC alleges that "Plaintiffs frequently worked split shifts when they would be called into work while off-duty, yet were never provided a split-shift premium." (FAC, ¶ 109.) However, Plaintiffs also allege that Belfor Defendants failed to pay Plaintiffs minimum wage: "Pursuant to § 4 of IWC Wage Order No. 16-2001, Plaintiffs were entitled to receive not less than the minimum wage for all hours worked. At all times relevant during the liability period, Defendants willfully failed and refused, and continues to willfully fail and refuse, to pay Plaintiffs the amounts owed." (FAC, ¶¶ 106, 107.) Plaintiffs have stated a claim for failure to pay minimum wage by alleging that Belfor Defendants filled out time sheets noting Plaintiffs' hours worked, that those time sheets "did not always accurately reflect the number of hours Plaintiffs worked per pay period," and that Trademark used the timesheets Belfor Defendants provided to calculate Plaintiffs' wages. (FAC, ¶ 15.) Thus, regardless of if Plaintiffs have also sufficiently stated a claim for failure to pay wages owed for split shifts, Plaintiffs have alleged facts sufficient to state a claim for

failure to pay minimum wage. “[A] demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy.” (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047 (*Kong*)). The court **OVERRULES** Belfor Defendants’ demurrer to Plaintiffs’ first cause of action.

Belfor Defendants demur to the FAC’s second cause of action for liquidated damages because “[l]iquidated damages is not a standalone claim.” (Demurrer, p. 10:8-9.) While “Plaintiffs cannot recover liquidated damages under section 1194.2 unless they have a valid claim under section 1194,” as explained above, Plaintiffs have stated a claim for failure to pay minimum wage and thus have stated a claim for liquidated damages. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 49, fn. 11.) The court **OVERRULES** Belfor Defendants’ demurrer to Plaintiffs’ second cause of action.

Belfor Defendants demur to the FAC’s third cause of action for unpaid overtime on the ground that Plaintiffs failed to adequately allege their on-call time was compensable. As explained above, Plaintiffs allege that “in addition to their regularly scheduled shifts, [they] were frequently contacted while off-duty in order to work last-minute shifts; often in instances in which Belfor [Defendants’] clients had an emergency that needed their attention. Plaintiffs are informed and believe, and thereon allege, that they were not adequately compensated for these on-call hours, and were particularly deprived of the proper overtime and double-time hourly rates.” (FAC, ¶ 26.) The FAC also alleges that Plaintiffs “frequently worked overtime[.]” (FAC, ¶ 102.) However, the FAC is not clear if Plaintiffs allege that they should have been paid for time spent on call, or if they are alleging that they should have been paid overtime for shifts worked outside of regularly scheduled shifts. The court **SUSTAINS** Belfor Defendants’ demurrer to Plaintiffs’ third cause of action with **30 DAYS’ LEAVE TO AMEND**.

Belfor Defendants demur to the FAC’s fourth and fifth causes of action for meal and rest breaks because employers are permitted to reschedule meal breaks. However, Plaintiffs allege that Belfor Defendants never gave Plaintiffs rest periods. (FAC, ¶ 24.) Thus, Plaintiffs adequately alleged that they were never given rest breaks. However, the FAC does not allege that Belfor Defendants failed to provide meal periods, but rather that “[t]hroughout their employment, Plaintiffs were frequently not afforded lawfully compliant meal periods. Despite having a typically designated ‘mealtime,’ Plaintiffs were frequently told that there was more work to be done and that the meal period would need to be taken later. As a result, Plaintiffs were frequently required to eat while on-route to another job site.” (FAC, ¶ 25.) Having a meal break postponed is different from being denied a meal break entirely. Plaintiffs do not allege that they were never given meal periods, but rather that their meal periods were delayed. The court **SUSTAINS** Belfor Defendants’ demurrer to Plaintiffs’ fourth cause of action for failure to provide meal periods with **30 DAYS’ LEAVE TO AMEND**. The court **OVERRULES** Belfor Defendant’s demurrer to Plaintiffs’ fifth cause of action for failure to provide rest breaks.

Belfor Defendants demur to the FAC’s sixth and seventh causes of action for failure to provide accurate wage statements and wages upon termination because Plaintiffs’ other claims fail. Belfor Defendants also demur to the FAC’s sixth cause of action because Plaintiffs do not allege an injury. However, this court has overruled Belfor Defendants’ demurrer to Plaintiffs’ first, second and fifth causes of action. The court **OVERRULES** Belfor Defendants’ demurrer to the FAC’s seventh cause of action. As for the sixth cause of action, Plaintiffs allege that they

“on numerous occasions, had to contact Trademark and correct issues” with their paystubs not accurately reflecting the total number of hours they worked per pay period such that “if they did not notice these mistakes, [Plaintiffs] would have been deprived of their lawful wages.” (FAC, ¶ 27.) Belfor Defendants argue on demurrer that Plaintiffs thus do not allege injury because Plaintiffs allege they were ultimately paid for hours worked. However, by pleading that Belfor Defendants failed to pay wages owed, among other cause of action, Plaintiffs have alleged “knowing and intentional failure by an employer” to comply with Labor Code section 226’s requirement that employers provide accurate and complete paystub information. (Lab. Code, §§ 226, subds. (a) & (e)(1).) . The court **OVERRULES** Belfor Defendants’ demurrer to the FAC’s sixth cause of action.

Belfor Defendants demur to the FAC’s eighth cause of action for failure to reimburse business expenses because Plaintiffs do not adequately allege separate business expenses. “The elements of a section 2802, subdivision (a) cause of action, as delineated by the statutory language, are: (1) the employee made expenditures or incurred losses; (2) the expenditures or losses were incurred in direct consequence of the employee's discharge of his or her duties, or obedience to the directions of the employer; and (3) the expenditures or losses were necessary.” (*Gallano v. Burlington Coat Factory of California, LLC* (2021) 67 Cal.App.5th 953, 960, internal citation and quotation marks omitted.) Here, Plaintiffs allege that they were not adequately compensated for clothing maintenance and labor costs, or for maintaining all methods of communications. (FAC, ¶¶ 156, 157.) Plaintiffs do not adequately allege that their clothing and laundry costs were incurred in direct consequences of the employee’s discharge of duties, as Plaintiffs presumably would have clothing or laundry costs independent of their employment responsibilities. However, Plaintiffs do allege that “they were required to maintain methods of communication, should Defendants require unscheduled on-call shifts or work, and Plaintiffs paid for all costs associated with these methods of communication.” (FAC, ¶ 157.) Thus, Plaintiffs have adequately alleged a cause of action for failure to reimburse business expenses. (See *Cochran v. Schwan's Home Service, Inc.* (2014) 228 Cal.App.4th 1137, 1144 [an employer must always reimburse an employee for the employee’s reasonable expense associated with mandatory use of a personal cell phone], see also *Kong, supra*, 108 Cal.App.4th at p. 1047 [demurrer cannot be sustained to part of a cause of action].) The court **OVERRULES** Belfor Defendants’ demurrer to the FAC’s eight cause of action.

The court **OVERRULES** Belfor Defendants’ demurrer to the FAC’s first, second, fourth, fifth, seventh, and eighth causes of action. The court **SUSTAINS** Belfor Defendants’ demurrer to the FAC’s third and sixth causes of action **WITH 30 DAYS’ LEAVE TO AMEND**.

ii. Causes of Action Nine through 14

Belfor Defendants demur to causes of action nine through 14 on the basis that this court has already sustained a demurrer to those causes of action without leave to amend based on workers’ compensation exclusivity doctrine. (Demurrer, p. 5:15-17.) This court’s order, dated March 3, 2025 (“March Order”), sustained Belfor Environmental’s demurrer to Plaintiffs’ causes of action for negligence, medical monitoring, breach of contract, unlawful business practices, intentional infliction of emotional, and negligent infliction of emotional distress without leave to amend. (March Order, p. 27:9-11.) However, Belfor USA did not demur to Plaintiffs’ Complaint jointly with Belfor Environmental as they do now to Plaintiff’s FAC, and thus the ninth through fourteenth causes of action against Belfor USA in Plaintiffs’ FAC are

not precluded by this court's prior order sustaining Belfor USA's demurrer. Nevertheless, the FAC does not allege any additional facts that change this court's analysis of Plaintiffs' ninth through fourteenth causes of action as applied to Belfor USA. Plaintiffs concede that the FAC's ninth through fourteenth causes of action fall within workers' compensation exclusivity doctrine. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"]; see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [failure to challenge a contention in a brief results in the concession of that argument].) Plaintiffs state that they will seek leave to amend to allege facts that fall outside the workers' compensation exclusivity doctrine, but do not explain how the FAC could be amended. (See *Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43 [plaintiff must demonstrate specific manner that complaint can be amended to address pleading deficiencies].) The court **SUSTAINS** Belfor Defendants' demurrer to the FAC's ninth through fourteenth causes of action **WITHOUT LEAVE TO AMEND**.

iii. Causes of Action 15 through 19

Belfor Defendants demur to the FAC's fifteenth cause of action because it is time-barred and lacks sufficient allegations, and to causes of action sixteen through nineteen because they are barred by workers' compensation exclusivity doctrine. (Demurrer, pp. 8:12-14, 12:10-11.)

As to the fifteenth cause of action, a PAGA action must be brought within one year of the alleged Labor Code violation and is tolled for only 65 days from the time a prefiling notice is submitted to the Labor Workforce Development Agency. (*Arce v. The Ensign Group, Inc.* (2023) 96 Cal.App.5th 622, 630.) Here, Plaintiffs' employment with Belfor Defendants ceased in November 2023, and Plaintiffs amended their complaint to allege a cause of action under PAGA in May 2025. Plaintiffs' fifteenth cause of action under PAGA is time barred. Plaintiff makes no argument regarding how the fifteenth cause of action is not time barred nor how the FAC can be amended to state a claim. Accordingly, the court **SUSTAINS** Belfor Defendants' demurrer to the FAC's fifteenth cause of action **WITHOUT LEAVE TO AMEND**.

Belfor Defendants demur to the FAC's sixteenth and seventeenth causes of action for retaliation on the basis that Plaintiffs' alleged injury is derivative of their claimed injuries of asbestos exposure, which are barred by workers' compensation exclusivity doctrine. (Demurrer, p. 8:15-17.) Plaintiffs concede by failing to make any argument to counter Belfor Defendants' contention that the retaliation-based causes of action are barred by workers' compensation exclusivity doctrine. The court **SUSTAINS** Belfor Defendants' demurrer to the FAC's sixteenth and seventeenth cause of action **WITHOUT LEAVE TO AMEND**.

The FAC's eighteenth and nineteenth causes of action allege injuries based on asbestos exposure and do not allege additional facts to support diverging from this court's prior order that Plaintiffs' causes of action based on asbestos exposure are barred by workers' compensation exclusivity doctrine and not subject to exceptions to that doctrine. (March Order, pp. 10:1-22:28.) The court **SUSTAINS** Belfor Defendants' demurrer to the FAC's eighteenth and nineteenth cause of action **WITHOUT LEAVE TO AMEND**.

Belfor Defendants' demurrer to the FAC's first, second, fifth, sixth, seventh, and eighth causes of action is **OVERRULED**. Belfor Defendants' demurrer to the FAC's third and fourth causes of action is **SUSTAINED WITH 30 DAYS' LEAVE TO AMEND**. Belfor Defendants' demurrer to the FAC's ninth through nineteenth causes of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

C. Trademark's Demurrer

Trademark demurs to Plaintiffs' FAC for failure to state a claim and additionally demurs to Plaintiffs' fifteenth cause of action for PAGA violations for being outside the statute of limitations. Trademarks demurs to the same causes of action as Belfor Defendants on the same bases. Plaintiffs do not distinguish Trademark from Belfor Defendants such that the court's analysis of Plaintiffs' FAC would apply differently between Defendants.

In addition, Plaintiffs argue in opposition that Trademark failed to meet and confer prior to filing a demurrer to cause of action one through eight. As explained above, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Code Civ. Proc., § 430.41, subd. (a)(4).) The court will not overrule Trademark's demurrer on that basis. However, neither the letter attached as an exhibit to the Declaration of Plaintiffs' counsel Allan A. Villanueva ("Villanueva Decl.") nor the Declaration of Amande Lee show that Trademark's meet and confer attempts prior to filing the demurrer included objections to causes of action one through eight. Code of Civil Procedure section 430.41 requires the demurring party to "identify *all* of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies." (Code Civ. Proc., § 430.41, subd. (a)(1).) Trademark evidently did not communicate their intent to demur to causes of action one through eight in their meet and confer attempts. Trademark argues in reply that it met and conferred with Plaintiffs telephonically a number of times subsequent to sending the letter, but Trademark still does not state it explicitly discussed objections to causes of action one through eight with Plaintiffs prior to filing a demurrer. Trademark is admonished to comply with its meet and confer requirements in the future.

Trademark's demurrer to the FAC's first, second, fifth, sixth, seventh, and eighth causes of action is **OVERRULED**. Trademark's demurrer to the FAC's third and fourth causes of action is **SUSTAINED WITH 30 DAYS' LEAVE TO AMEND**, and Trademark's demurrer to the FAC's ninth through nineteenth causes of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

III. MOTIONS TO STRIKE

A. Legal Standard

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) The court's decision to strike the petition pursuant to section 436 is discretionary. (See Code Civ. Proc., § 436 ["The court may . . . strike"].)

B. Belfor Defendants' Motion to Strike

Belfor Defendants move to strike the entirety of Plaintiffs' FAC because Plaintiffs did not properly seek leave to amend. This court's prior order sustained Belfor Environmental's demurrer to Plaintiffs' ninth through fourteenth causes of action without leave to amend, but as noted above, Belfor USA did not join Belfor Environmental in that demurrer. The FAC specifies that the ninth through fourteenth causes of action (but not the twelfth cause of action) apply only to Belfor USA, Trademark, and Does 1 through 100. Thus, the FAC is timely as to Belfor USA. Moreover, Belfor Defendants' own authority cited for the proposition that Plaintiffs cannot file the FAC after Belfor USA filed an answer actually supports the contrary. (See *Barton v. Khan* (2007) 157 Cal.App.4th 1216, 1220-1221 [Thus, in this case of first impression, we must determine whether one defendant's filing of an answer divests plaintiff of the right to amend the complaint with respect to the causes of action brought against other demurring defendants. We conclude that it does not."].) The court **DENIES** Belfor Defendants' motion to strike the entirety of Plaintiffs' FAC. (See also Code Civ. Proc., § 436, subd. (b) [striking all or any part of any pleading not filed in conformity with an order of the court is in the court's discretion].)

Belfor Defendants also move to strike the paragraphs of the FAC relating to Plaintiffs' asbestos exposure, retaliation, and fraud claims. As this court has sustained Belfor Defendants' demurrer to the FAC's ninth through nineteenth causes of action, the court **DENIES** Belfor Defendants' motion to strike because it is moot.

C. Trademark's Motion to Strike

Trademark moves to strike the same portions of the FAC as Belfor Defendants on the same bases, with the exception that Trademark did not move to strike the entire complaint because Plaintiffs amended without leave to amend. As explained above, Plaintiffs do not distinguish Trademark from Belfor Defendants such that the court's analysis of Plaintiffs' FAC would apply differently between Defendants. Thus, the court **DENIES** Trademark's motion to strike as moot.

IV. CONCLUSION

Belfor Defendants' demurrer to the FAC's first, second, fifth, sixth, seventh, and eighth causes of action is **OVERRULED**. Belfor Defendants' demurrer to the FAC's third and fourth causes of action is **SUSTAINED WITH 30 DAYS' LEAVE TO AMEND**. Belfor Defendants' demurrer to the FAC's ninth through nineteenth causes of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Trademark's demurrer to the FAC's first, second, fifth, sixth, seventh, and eighth causes of action is **OVERRULED**. Trademark's demurrer to the FAC's third and fourth causes of action is **SUSTAINED WITH 30 DAYS' LEAVE TO AMEND**, and Trademark's demurrer to the FAC's ninth through nineteenth causes of action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Belfor Defendants' motion to strike the FAC is **DENIED** as moot. Trademark's motion to strike the FAC is **DENIED** as moot.

The court will prepare the Order.

Calendar Line 6/7

Case Name: *Richard Chamberlain v. Santa Clara Public Defender's Office et al.*

Case No.: 25CV456689

PLAINTIFF'S MOTION TO COMPEL & MOTION FOR SANCTIONS

Plaintiff seeks an order compelling the Santa Clara County Public Defender's Office ("PDO") to serve further responses to Plaintiff's First Set of Requests for Production of Documents and requests \$1,500 in monetary sanctions. Plaintiff contends the PDO's responses are evasive and incomplete, rely on improper objections, fail to state whether responsive documents exist, fail to produce nonprivileged documents, and fail to provide a privilege log.

The parties agree that Plaintiff served the requests on December 15, 2025, and that the PDO served written responses on January 15, 2026. The requests seek documents including Plaintiff's criminal file, internal policies and procedures, billing records and communications, internal logs or checklists, and notes or memoranda relating to witness investigation and evidence review. The PDO responded with objections, including attorney-client privilege and attorney work product objections, and declined to produce documents in response to the identified requests.

Plaintiff contends the PDO was required to provide a privilege log and argues that its failure to do so waived all privilege and work product objections.

GOVERNING LAW

A party may move to compel further responses to requests for production where a statement of compliance is incomplete, a representation of inability to comply is inadequate, or an objection is without merit or too general. Such a motion must be accompanied by a meet-and-confer declaration showing a reasonable and good-faith effort to resolve the dispute informally. (Code Civ. Proc., §§ 2031.310, 2016.040.)

A motion concerning the content of discovery responses must be accompanied by a separate statement unless an exception applies. (Cal. Rules of Court, rule 3.1345.)

A response to a request for production must state compliance, inability to comply, or an objection. If privilege or work product protection is asserted, the response must provide sufficient factual information to permit evaluation of the claim, including a privilege log if necessary. (Code Civ. Proc., § 2031.240.)

Timely asserted attorney-client privilege and attorney work product objections are not waived solely because a responding party fails to provide a privilege log or provides an inadequate privilege log. The proper remedy for an inadequate privilege log is an order requiring additional information or other appropriate relief, not a judicial finding of waiver. See *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116; *Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181.

ANALYSIS

A. The Motion Is Procedurally Defective

The motion is procedurally defective because Plaintiff failed to submit the separate statement required by California Rules of Court, rule 3.1345. Plaintiff challenges the content of the PDO's responses and seeks further responses to those requests. The record reflects that the PDO served written responses on January 15, 2026, and Plaintiff has not shown that any exception to the separate-statement requirement applies.

The motion is also procedurally defective because Plaintiff has not demonstrated a reasonable and good-faith meet-and-confer effort. Plaintiff's showing establishes only that he sent a meet-and-confer letter. The PDO's evidence reflects that counsel responded substantively on January 23, 2026, explaining the PDO's position, and that Plaintiff filed the present motion without any further effort to address the issues raised in that response. On this record, Plaintiff has not satisfied the meet-and-confer requirements of the Discovery Act.

These procedural defects provide an independent basis to deny the motion.

B. The PDO Did Not Waive Attorney-Client or Work Product Protection by Failing to Provide a Privilege Log

Plaintiff argues that the PDO waived all objections by failing to provide a privilege log. The argument lacks merit.

Code of Civil Procedure section 2031.240 requires a responding party asserting privilege or work product protection to provide sufficient factual information to permit evaluation of the claim, including a privilege log if necessary. However, the statute codifies existing California law and does not create a waiver rule for deficiencies in a privilege log. California courts have repeatedly held that where privilege or work product objections are timely asserted, the trial court lacks authority to deem those protections waived solely because no privilege log was served or because the privilege log is inadequate. The appropriate remedy is an order requiring additional information or a more detailed privilege log, not compelled disclosure of potentially privileged material.

Here, the record reflects that the PDO timely served written responses asserting attorney-client privilege and attorney work product objections. Accordingly, even assuming a privilege log should have been provided, the Court rejects Plaintiff's contention that the PDO thereby waived all privilege and work product objections.

Because the motion is denied on procedural grounds, the Court does not reach the merits of Plaintiff's challenges to individual responses or determine whether any additional factual information, including a privilege log, would otherwise be required.

SANCTIONS

Plaintiff's request for monetary sanctions is DENIED.

DISPOSITION

Plaintiff's motion to compel further responses to Requests for Production of Documents, Set One, is DENIED.

Plaintiff's request for a finding that the PDO waived attorney-client privilege and attorney work product objections by failing to provide a privilege log is DENIED.

Plaintiff's request for monetary sanctions is DENIED.

Defendant to prepare the final proposed order, accompanied by necessary Form EFS-020 within 7 days of the hearing.

- oo0oo -

Calendar line 9 & 10**Case Name:** *Syed Hamdani et al. v. Three Arch LLC et al.***Case No.:** 25CV483393**I. MOTION TO COMPEL ARBITRATION****BACKGROUND**

Plaintiff Syed Zafar Hamdani (“Plaintiff”) through his sister and guardian ad litem, Farzana Hamdani (“Ms. Hamdani”) sues Three Arch LLC dba the Villas at Saratoga Skilled Nursing & Assisted Living alongside the alleged parent entities Kalesta Healthcare Group, CTR Partnership, and CareTrust REIT (“Defendants”). This action arises out of Plaintiff’s residency at the Saratoga facility from August 25 to October 29, 2025. Plaintiff alleges he suffered an unwitnessed fall on October 2, 2025 that fractured his right leg and hip and required surgery at Stanford Hospital after a two-day delay in imaging and emergency care by Defendants. (See Complaint at ¶¶ 51, 52.) Plaintiff also suffered from an untreated infection on his right foot. (*Id.* at ¶ 63.) Plaintiff alleges Defendants repeatedly failed to provide toilet, hygiene, dietary and wound care. (*Id.* at ¶ 80.) Plaintiff alleges these harms are the result of chronic understaffing and undertraining by Defendants who are instead engaged in a profit-maximizing scheme. (See *id.* at ¶¶ 14-17, 90.)

Plaintiff filed suit on December 30, 2025. Plaintiff alleges seven causes of action for (1) elder abuse/neglect under Welfare & Institutions Code section 15600 et seq; (2) negligence/willful misconduct; (3) violation of residents’ rights under Health & Safety Code section 1430(b) against Three Arch LLC; (4) intentional misrepresentation; (5) concealment; (6) intentional infliction of emotional distress; and (7) premises liability. Plaintiff seeks general, special, statutory, and punitive damages, as well as attorneys’ fees, injunctive relief and a jury trial.

Defendants now move to compel arbitration of Plaintiff’s claims pursuant to the Resident – Facility Arbitration Agreement (the “Agreement”) signed by Plaintiff. Having considered the Agreement and the circumstances of its execution, the court will deny the motion to compel arbitration.

Defendants’ evidentiary objections to the Declaration of Farzana Hamdani are **OVERRULED**. Ms. Hamdani’s declaration is based on her own personal knowledge of the facts set forth therein. Her testimony is offered as evidence of her brother’s state of mind during his residency at the facility and is not inadmissible hearsay pursuant to Evidence Code section 1250. Likewise, Defendants’ evidentiary objections to the Declaration of Sikander Naqvi are also **OVERRULED**. Mr. Naqvi’s declaration and accompanying text message from Plaintiff speaks to Plaintiff’s state of mind at the time the message was sent and is relevant because the message was sent three days before he signed the Agreement.

LEGAL STANDARD

The Federal Arbitration Act (“FAA”) applies. The Agreement provides that it is to be “governed by the Federal Arbitration Act (9 U.S.C. §§ 1-6) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel arbitration[.]” (Defendants’ Compendium of Exhibits [“COE”], Ex. 1 at ¶ 7.) The Agreement further provides, “[t]his Agreement relates to the Resident’s admission to the Facility, and the Facility, among other things, participates in Medicare and/or Medi-Cal

programs and/or procures supplies from out of state vendors. The parties, therefore, agree that the underlying admission to the Facility involves interstate commerce.” (*Ibid.*)

The FAA’s term “involving commerce” is interpreted broadly. The basic coverage provision of the FAA “makes the law applicable to contracts evidencing a transaction ‘involving commerce’ (9 U.S.C. § 2), which language reflects that Congress intended the law’s coverage to extend to the full reach of its commerce clause power.” (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted].) “Congress Commerce Clause power ‘may be exercised in individual cases without showing any specific effect upon interstate commerce’ if in the aggregate the economic activity in question would represent ‘a general practice . . . subject to federal control.’” (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56-57 [quoting *Mandeville Island Farms, Inc. v. American Crystal Sugar Co.* (1948) 334 U.S. 219, 236].) As noted above, Defendants receive funding from Medicare and Medi-Cal and procures supplies from out-of-state vendors. These activities meet the broad definition for interstate commerce.

The Agreement notably excludes from application California Code of Civil Procedure section 1281.2 (c) “as the parties mutually desire to have any and all disputes submitted to binding arbitration.” (COE, Ex. 1 at ¶ 6.) Thus, the FAA applies. Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS

At issue is whether there is a valid agreement to arbitrate between the parties. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.)

Defendants have attached a copy of the Arbitration Agreement bearing the Plaintiff’s signature. (COE, Ex. 1.) While Defendants have met their initial burden, Ms. Hamdani argues Plaintiff lacked capacity to enter into the Agreement.

The court’s discussion of the capacity to enter into a contract in *Algo-Heyres v. Oxnard Manor LP* (2023) 88 Cal.App.5th 1064, 1070-1071 (*Algo-Heyres*) is instructive:

As noted by the trial court, “The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement.” (*Avila, supra*, 20 Cal.App.5th at p. 844.) But the trial court also noted the “rebuttable presumption affecting the burden of proof that all persons have the capacity to make decisions and to be responsible for their acts or decisions.” (Prob. Code, § 810, subd. (a); see *Wilson v. Sampson* (1949) 91 Cal.App.2d 453, 459 [205 P.2d 753].)

“A judicial determination that a person is totally without understanding, or is of unsound mind, or suffers from one or more mental deficits so substantial that, under the circumstances, the person should be deemed to lack the legal capacity to perform a

specific act, should be based on evidence of a deficit in one or more of the person's mental functions" (Prob. Code, § 810, subd. (c).) As the trial court acknowledged, Probate Code section 811 requires that incapacity to contract be supported by evidence of a deficit in at least one of four areas: alertness and attention, information processing, thought processes, and ability to modulate mood and affect. (Prob. Code, § 811, subd. (a).) The deficit must "significantly impair[] the person's ability to understand and appreciate the consequences of his or her actions with regard to the type of act or decision in question." (Prob. Code, § 811, subd. (b).) The capacity to make a decision requires the person have the ability to communicate the decision verbally or by other means, and to understand and appreciate the rights and responsibilities affected by the decision, the probable consequences, and the "significant risks, benefits, and reasonable alternatives involved in the decision." (Prob. Code, § 812.)

"[T]he determination of a person's mental capacity is fact specific, and the level of required mental capacity changes depending on the issue at hand ... with marital capacity requiring the least amount of capacity, followed by testamentary capacity, and on the high end of the scale is the mental capacity required to enter contracts." (*Greenway, supra*, 217 Cal.App.4th at p. 639.) "More complicated decisions and transactions ... require greater mental function" (*Andersen v. Hunt* (2011) 196 Cal.App.4th 722, 730 [126 Cal. Rptr. 3d 736].)

The complexity of the Agreement here is not undermined by the fact that it was a two-page document because it included references to legal terms, statutes, and waived the constitutional right to a trial. Thus, Plaintiff's capacity to enter into this Agreement required greater mental function. According to the Declaration of Dunia Aparicio, Ms. Aparicio states that she first contacted Ms. Hamdani to identify whether she had authority to execute the admission paperwork, including the Agreement, on behalf of Plaintiff since she had a Power of Attorney. (Declaration of Dunia Aparicio at ¶ 5.) Ms. Aparicio states that during her conversation with Ms. Hamdani, she indicated that she only had a Power of Attorney for healthcare decisions and that Plaintiff could execute the paperwork himself. (*Ibid.*) Ms. Aparicio maintains Plaintiff remained alert and oriented while executing the Agreement. (*Ibid.*) Ms. Aparicio's testimony is, however, contravened by Ms. Hamdani's testimony.

First, Ms. Hamdani states that she does not recall speaking with Ms. Aparicio or anyone on behalf of Defendants concerning Plaintiff's ability to sign admissions paperwork. (Declaration of Farzana Hamdani ["Hamdani Decl."] at ¶ 10.) She does not recall telling anyone at the facility that her brother was capable of executing the admissions paperwork himself. (*Ibid.*) Second, Ms. Hamdani presents evidence of deficits in one or more of Plaintiff's mental functions. Ms. Hamdani states her brother did not always know where he was and believed he was sleeping at a bank. (Hamdani Decl. at ¶ 5.) He became upset and confused when Ms. Hamdani told him he was in a care facility. (*Ibid.*) Ms. Hamdani also states her brother told her he was buying shirts in a store when he was not. (Hamdani Decl. at ¶ 6.) She further states her brother demonstrated confusion between his old caregiver and new caregiver. (*Id.* at ¶ 9.)

Additionally, the Declaration of Sikander Naqvi especially shows Plaintiff lacked mental capacity in the days leading up to his execution of the Agreement. Mr. Naqvi attaches a text message he received three days before Plaintiff signed the Agreement. (Declaration of Sikander Naqvi, Ex. A.) Therein, Plaintiff states he had attended business meetings in the United Kingdom, the Netherlands, and Belgium when he had just been admitted to the facility the day prior. (*Ibid.*) The evidence thus supports deficits in each of the four areas described by Probate Code section 811, subdivision (a). Plaintiff, therefore, lacked the ability to understand and appreciate the consequences of signing the Agreement.

To the extent Defendants cite to Dr. Haggerty's medical records, those records are not attached and nevertheless indicate Plaintiff lacked capacity to make medical decisions just three days prior to the execution of the Agreement. Furthermore, the Court may rely on testimony from family members regarding their personal observations of the individual's confusion, memory issues, and inability to understand the nature and effect of the document at the time of execution. (*Algo-Heyres, supra*, 88 Cal.App.5th at p. 1071.) Defendants' reliance on *Harrod v. Country Oaks Partners* (2024) 15 Cal.5th 939, 966 is misplaced. That case addressed whether a health care agent with power of attorney for health care decisions had authority to sign an arbitration agreement on behalf of the principal. The California Supreme Court held the health care agent lacked such authority because signing an optional arbitration agreement is not a "health care decision" within the scope of the health care power of attorney. (*Id.* at p. 966.) Nevertheless, *Harrod* did not eliminate the requirement that the principal himself must have capacity to enter into a contract. Thus, the question in *Harrod* was about the agent's authority and not the principal's capacity.

Even in the absence of medical records, Ms. Hamdani and Mr. Naqvi's declarations about Plaintiff's state of mind cast doubt as to whether Plaintiff had the capacity to understand the legal effect of the Agreement. The evidence creates a factual dispute in this regard. Apart from the testimony of Ms. Aparicio which is challenged by Plaintiff's evidence, Defendants have not met their burden by a preponderance of the evidence. "This is a classic example of a trial court drawing a conclusion from conflicting evidence." (*Bannister v. Marinidence Oppo, LLC* (2021) 64 Cal.App.5th 541, 545 [denying the motion to compel arbitration based on conflicting evidence regarding the respondent's signature] .) With Plaintiff's capacity drawn into question, the Court cannot conclude there is a valid agreement to arbitrate.

For these reasons, the motion to compel arbitration is DENIED. The Court need not reach the parties' remaining arguments.

II. MOTION FOR TRIAL PREFERENCE

A. LEGAL STANDARD

Code of Civil Procedure section 36(a) provides: "A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation."

The statute is mandatory: where a party meets the requisite standard for calendar preference under subdivision (a), "preference must be granted." Section 36(a) "was intended by the

Legislature to be mandatory and thus requires that a litigant qualifying under its terms be given preferential trial setting irrespective of the circumstances leading to the motion for preference." The provision is "mandatory and absolute in its application and does not allow a trial court to exercise the inherent or statutory general administrative authority it would otherwise have."

"[F]ailure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." "The trial court has no power to balance the differing interests of opposing litigants in applying the provision." "Mere inconvenience to the court or to other litigants is irrelevant."

The issue under subdivision (a) is not whether an elderly litigant might die before trial or become disabled; rather, "all subdivision (a) requires is a showing that that party's health ... is such that a preference is necessary to prevent prejudicing [the party's] interest in the litigation." Section 36(a) "includes no requirement of a doctor's declaration" and "says nothing about 'death or incapacity.'" Only a minimal amount of evidentiary support is required for a movant to prevail on a motion for preference. Section 36.5 permits the medical diagnosis and prognosis to be established through an attorney declaration "based upon information and belief," and such a declaration "can consist entirely of hearsay and conclusions."

Defendants erroneously conflate section 36(a) with section 36(d). Section 36(d) requires "clear and convincing medical documentation" showing "substantial medical doubt of survival ... beyond six months" and grants discretionary authority to the court. Section 36(a) contains no such requirements and is mandatory, not discretionary.

I. ANALYSIS

Plaintiff Is Over 70 Years of Age - Plaintiff is 71 years old (turning 72 since the motion was filed). The Court takes judicial notice of Exhibit A to the Kang Gordon Declaration, which shows Plaintiff's date of birth as July 21, 1954. This element is satisfied.

Plaintiff Has a Substantial Interest in the Action – Defendants do not contest that Plaintiff has a substantial interest in the action. This element is satisfied.

Plaintiff's Health Is Such That Preference Is Necessary to Prevent Prejudicing His Interest in the Litigation - Plaintiff presents evidence that he is 72 years old and suffers from multiple co-morbid health conditions including chronic congestive heart failure, atherosclerotic heart disease, hyperlipidemia, and hypertension. Medical records attached to the Kang Gordon Declaration confirm these diagnoses.

Dr. Venita Chandra, Plaintiff's treating vascular surgeon at Stanford Health Care, states that Plaintiff has been treated by the Vascular Surgery Department since 2023 for peripheral artery disease and has undergone multiple interventions including a left trans-metatarsal amputation and, most recently, a right below-knee amputation. Dr. Chandra opines that "due to his history of amputations, it has been difficult for Mr. Hamdani to mobilize out of bed despite assistance of physical therapy" and that "due to his fall history, general deconditioning, and recent amputations, the patient has been bedridden despite recovering at skilled nursing facility and

physical therapist evaluation.". Dr. Chandra concludes: "Given these ongoing issues, time is of the essence for Mr. Hamdani to have his claims heard sooner rather than later.".

Defendants argue that Plaintiff has failed to provide sufficient evidence of his prognosis and that Dr. Chandra's statement that Plaintiff is "recovering" undermines the motion. This argument misapprehends the legal standard. Section 36(a) does not require evidence of imminent death or a specific prognosis; it requires only a showing that "the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.". The evidence shows an elderly plaintiff with serious chronic conditions, bilateral amputations, significant mobility limitations, and a bedridden status. This is sufficient to show that delay in bringing the case to trial would prejudice his ability to participate meaningfully in the litigation.

Defendants' reliance on section 36(d)'s "clear and convincing" standard and requirement of medical doubt of survival beyond six months is misplaced. Plaintiff proceeds under section 36(a), which imposes no such requirements.

Defendants' Arguments Regarding Court Authority and Arbitration.

Since the petition to compel arbitration is denied, there is no impediment to ruling on the motion for preference.

Defendants' Arguments Regarding Prejudice and Discovery

Defendants argue that granting preference would deprive them of adequate time to prepare for trial and conduct discovery, particularly given the complexity of the elder abuse and Residents' Rights claims.

This argument is foreclosed by controlling authority. Section 36(a) is "mandatory and absolute in its application" and does not permit the court to balance competing interests or consider the convenience of other parties. "[F]ailure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36.". "The trial court has no power to balance the differing interests of opposing litigants in applying the provision.". "Mere inconvenience to the court or to other litigants is irrelevant.".

The Legislature has determined that when a party over 70 years of age demonstrates substantial interest in an action and that his or her health is such that preference is necessary to prevent prejudice, the motion "shall" be granted "irrespective of the circumstances leading to the motion for preference.". Defendants' concerns about discovery and trial preparation, while understandable, are not relevant considerations under section 36(a).

DISPOSITION

The motion to compel arbitration is DENIED.

Motion for Trial Preference is GRANTED.

Pursuant to CCP section 36(f), the matter shall be set for trial not more than 120 days from the date of this order, absent a showing of physical disability of a party or attorney, or other exceptional circumstances stated in the record. The parties are ordered to appear to set all related pretrial and trial dates consistent with this ruling.

Discovery and motion cutoff dates shall be set in accordance with the trial date.

The Court will prepare the Order.

- oo0oo -